

		<i>Plaintiff to give notice of this ruling which shall include notice to Weyer, Crelling & Custer.</i>
6.	Balboa Capital Corp. v. Sasquatch Services LLC 25-1469145	<i>(Off calendar)</i>
7.	LVNV Funding LLC v. Gomez 21-1219223	The motion to enforce settlement filed by plaintiff LVNV Funding LLC (Plaintiff) is CONTINUED TO JULY 30, 2026, AT 1:30 P.M. IN DEPARTMENT C20. There is no proof of service filed showing defendant Jasmine Gomez (Defendant) was served with this motion. The motion is therefore CONTINUED as stated above. Plaintiff is ordered to file a proof of service showing Defendant was properly and timely served with the motion. Said proof of service shall be filed at least 5 court days prior to the hearing. <i>Counsel for Plaintiff shall give notice.</i>
8.	Tapia v. The Regents of the University of California 24-1446222	Before the Court is the Motion for Reconsideration and Relief from Terminating Sanctions, etc., filed on 3/17/26 by Plaintiff Melissa Tapia in her individual capacity and in her capacity as decedent Luis Recinos' successor-in-interest ("Plaintiff"). The Motion is effectively a motion for relief under <i>C.C.P. § 473(b)</i>, based upon an attorney declaration of fault regarding discovery violations that resulted in terminating sanctions. In that context, the application for mandatory relief would be in proper form if it demonstrated that verified discovery responses had been served, for all of the outstanding discovery. (See <i>Rodriguez v. Brill</i> (2015) 234 Cal.App.4th 715, 729.) But Plaintiff's motion does not comply, as Plaintiff's counsel here has asserted only that compliance was anticipated. (ROA 225, Smith Decl., ¶ 19.) The Motion is therefore DENIED. <i>Counsel for Defendant Regents of the University of California is to give notice of this ruling.</i>
9.	Corzine v. Riemann 20-1133569	<i>(Moot)</i>
10.	Long v. Glyder LLC 22-1275657	Before the Court is the Motion for Monetary and Terminating Sanctions, filed on 10/21/25 by Plaintiff Chen "Peter" Cheng Long ("Plaintiff"). The Motion is DENIED. Plaintiff concedes on reply that the portion of the motion seeking terminating sanctions is now moot. However, Plaintiff continues to assert that substantial monetary sanctions should be imposed on Defendant Stuart Solkow ("Solkow") pursuant to <i>C.C.P. §§ 128.5, 2023.010, and 2023.030</i>. Plaintiff argues that sanctions are warranted under <i>C.C.P. § 128.5</i> because Defendants engaged in misconduct by asserting meritless

		defenses. However, sanctions under §128.5 are not warranted because a defendant chose to go to trial, based on what were determined to be meritless defenses. (<i>Triplett v. Farmers Ins. Exchange</i> (1994) 24 Cal.App.4th 1415, 1422.) Plaintiff has not shown that sanctions under §128.5 can and should be imposed here. Plaintiff also argues that sanctions are warranted under <i>C.C.P. §§ 2023.010</i> and <i>2023.030</i>, for misuse of the discovery process, citing <i>City of Los Angeles v. PricewaterhouseCoopers, LLP</i> (2024) 17 Cal.5th 46, 58-59 and <i>Kwan Software Engineering, Inc. v. Hennings</i> (2020) 58 Cal.App.5th 57, 77. But in both of those cases, an egregious pattern of discovery abuse was perpetrated by the plaintiff, which permeated the entire action. Here, the evidence presented suggests that on specific issues, Solkow was evasive or not fully forthcoming. But Plaintiff has not clearly shown that Solkow engaged in a pattern of egregious discovery abuse that was sufficiently substantial to warrant discovery sanctions here. The Motion is therefore DENIED. Plaintiff's Request for Judicial Notice is GRANTED under <i>Ev. Code §452(d)</i>, as to the existence of the records. Defendants' Evidentiary Objections, filed as ROAs 1351 and 1352, are OVERRULED. <i>Counsel for Plaintiff is to give notice of this ruling.</i>
11.	Auto Finance Solutions, LLC v. Prestige Kia Riverside 25-1500766	A) Los Angeles Federal Credit Union 1) <i>Demurrer</i> Defendant Los Angeles Federal Credit Union's ("LAFCU") demurrer to Auto Finance Solutions, LLC's ("Plaintiff") First Amended Complaint ("FAC") is SUSTAINED. LAFCU demurs to causes of action ("COA") six through nine on the basis they fail to state sufficient facts. (<i>Civ. Proc. Code § 430.10(e)</i>.) a) <u>COA No. 6 – Conversion and Replevin</u> "Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages....[Citation omitted.]" (<i>Lee v. Hanley</i> (2015) 61 Cal. 4th 1225, 1240 ("Lee").) The term 'dominion' is defined by Black's as: "1. Control; possession <dominion over the car>." (<i>DOMINION, Black's Law Dictionary</i> (12th ed. 2024).) Plaintiff alleged it held prior recorded liens on the Vehicles by virtue of its contractual rights and possession of the original titles. (FAC ¶ 82.) Lenders exercised dominion and control of the Vehicles by accepting and recording liens thereon using fraudulent titles created by Prestige/Akbar, relying on tainted DMV records, withholding vehicles